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File No.: EXP202316765

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against GRIMEY WEAR, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202316765 (PS/00522/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 02/07/23, Mr. A.A.A. (hereinafter, the claimant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity GRIMEY WEAR, S.L., with CIF: B86141272, (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), the Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The facts stated by the claimant are as follows:

"On January 27, 2023, I requested the deletion of all my data associated with my account, and they responded on January 30, 2023, that they would pass it on to the responsible personnel. On April 23, 2023, I reminded them that they had not yet deleted my data, and they had already exceeded the legal deadline, providing me with evidence that this was done on April 25. To my surprise, since April 25, when there should be no existence, I received two more newsletters, one on June 21 and the other in July when it was supposed that they had already deleted my data."

Along with the complaint, the following documentation is attached:

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Dated January 27, 2023, a copy of the email sent by the claimant to the address ***EMAIL.1, requesting that all their data from the email account as well as all newsletters be deleted.

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Dated April 23, 2023, a copy of the email sent by the claimant to the address ***EMAIL.1 with the following message:

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"It has been almost three months since I made the request to delete my data, and this has not been done as I can still access the account. The legal deadline to carry out this process, as reflected in the data law, is one month from my request. When will the deletion of the account be carried out?"

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Dated April 25, 2023, a copy of the email received from the address ***EMAIL.1, indicating: "Hello A.A.A., We have forwarded this to the corresponding department."

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Dated April 25, 2023, a copy of the email received from the address ***EMAIL.1, indicating: "... we inform you that the account has been deactivated and our colleagues have unsubscribed you from the

newsletter.”

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Dated June 20, 2023, a copy of the email received from the address “Grimey” ***EMAIL.2, containing advertising messages.

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At the end of these emails, the following message can be read:

“For any inquiries, you can contact us by writing to ***EMAIL.1. Do you want to stop receiving these emails? You can modify your preferences <>.”

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Dated June 21, 2023, a copy of the email sent by the claimant to the address ***EMAIL.2, with the following message:

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“Why did I receive this advertisement when I have a confirmation email from you stating that you removed me from your database in April? Due to your repeated non-compliance with the Data Protection Law, I will contact the AEGPD.”

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Dated July 1, 2023, a copy of the email received from the address ***EMAIL.2, containing advertising messages.

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At the end of these emails, the following message can be read:

“For any inquiries, you can contact us by writing to ***EMAIL.1. Do you want to stop receiving these emails? You can modify your preferences <>.”

SECOND: On July 7, 2023, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

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Public (LPACAP), according to the certificate from the Electronic Notification Service and Electronic Address, was sent to the respondent on 07/07/23 through the electronic notification service, “NOTIFIC@”, being accepted by the respondent on 10/07/23.

THIRD: On 03/08/23, a written response from the respondent to the request made was received at this Agency, in which they state the following:

“We are writing to you regarding the complaint received for alleged non-compliance with the GDPR on our web platform (grimey.com). Through this resource, we wish to present our allegations and explain the relevant facts surrounding this situation.

First of all, we would like to point out that our company, Grimey Wear, is currently in a transition period from one web platform to another. During this migration process, an unexpected situation occurred that resulted in the crossover of some data from old customers.

However, we want to emphasize that this data transfer was an isolated incident and does not reflect our usual data protection practices in any case. You can verify in our history that this is correct.

(However, upon reviewing the facts and evidence presented in the complaint, we accept and acknowledge the error made, and apart from apologizing, both to your organization and to the affected party, we can confirm that the necessary measures have already been taken and the problem has been completely resolved).

It is important to note that, due to the platform change, we currently do not have the subscription form available on our website (In particular, the registration of this customer was made in 2008). However, we are diligently working to restore it as soon as possible.

Our main objective is to comply with legal requirements and ensure total transparency in the handling

of our users' data, as we have done at all times since our online opening about 10 years ago. We would like to highlight that we are making more significant changes and making important investments in our platforms with the express purpose of preventing this type of incident in the future and ensuring that we always operate within the limits of current legality.

We have implemented additional security and privacy measures to protect our users' information, and we are committed to safeguarding their personal data responsibly. (To this end, we have recently contracted the services of the Salesforce platform along with an external agency that will guide and advise us, which has the necessary tools for the control of absolutely all our customers' data, as well as its proper management to ensure that we do not incur in this type of infringement or others).

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We appreciate your understanding in this matter and apologize for any concern or inconvenience this may have caused. In light of the above, we respectfully request that the isolated nature of the incident and the diligent approach we have taken to address the situation be taken into account. We trust that our response to the incident demonstrates our commitment to the protection of personal data and our willingness to fully cooperate with the competent authorities. We appreciate your attention to this matter and hope that, after considering the circumstances described, the complaint can be reevaluated and our response and corrective actions taken can be taken into account.

P.S.: We attach screenshots of our registration and unregistration processes, as well as an excerpt from the Privacy Policy page on our website. Unfortunately, we do not have the customer's registration data as all traces of their account with us have been completely deleted. It should be noted that the account was created in 2016 and that the registration system was slightly different from the current one, which was modified with the update of the Data Protection Law.

FOURTH: On 13/08/23, a new document was received by this Agency from the complainant, as an extension of their initial complaint, indicating the following:

Grimey Wear SL sent me a communication clearly stating that they had made a mistake regarding the data protection policy and that at the time they did not proceed to completely delete all the mailing lists associated with my account, assuring me, and I quote their exact words: "we have ensured that your data has been permanently deleted from our mailing lists. Our team has been retrained in the proper management of customer data and we are committed to maintaining high standards of data protection in the future." This confirmation email is dated July 26, 2023, but to my surprise, yesterday, that is, August 11, I received another commercial communication when it was supposed that my data had already been deleted.

Along with the document, the following documentation is attached:

- Dated 26/07/23, a copy of the email received from the address ***EMAIL.3 indicating the following:

- o "Dear customer, First of all, we want to express our sincerest apologies for the error we made regarding the data protection policy in our systems. We fully acknowledge our responsibility in this matter and deeply regret any inconvenience this may have caused you. We understand the importance of safeguarding the privacy and personal data of our customers, and we are very sorry that on this occasion we did not meet the standards you deserve and that we impose on ourselves.

The error that occurred in our systems resulted in our failure to completely delete all the mailing lists associated with your account, despite your explicit request for unregistration. We acknowledge that this was a fault on our part and have carefully reviewed our processes to ensure that it does not happen again in the future.

We want to emphasize that our intention has always been to maintain a close and respectful relationship with our customers, and we never intended to cause you any inconvenience. We have taken this incident as an opportunity to learn and improve our systems so that we can offer you a more reliable and secure service.

We have taken all necessary measures to completely resolve this particular case, and we have ensured that your data has been permanently deleted from our mailing lists. Our team has been

retrained in the proper management of customer data and we are committed to maintaining high standards of data protection in the future.

Your satisfaction is our priority, and we sincerely hope that you can accept our apologies. We greatly appreciate your understanding. If you have any further concerns or questions, please do not hesitate to contact us. We are here to assist you with whatever you need. Again, thank you for your understanding."

- Dated 11/08/23, a copy of the email received from the address ***EMAIL.2, containing advertising messages.

FIFTH: On 02/10/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

LEGAL GROUNDS

I.

Competence.

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.

Summary of the events that occurred:

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In the complaint submitted by the claimant, it is stated that on 27/01/23, he sent an email to the respondent requesting to exercise his right to erasure of all his personal data held in the respondent's systems so that he would no longer receive commercial communications. On 30/01/23, he received an acknowledgment indicating that "it will be forwarded to the responsible personnel."

On 23/04/23, the claimant sent another email to the respondent reminding them that they had not yet erased his personal data, as he still had access to the system with his data and credentials. He was informed that the erasure of his data would be carried out immediately; however, he received two more promotional emails on 21/06/23 and 01/07/23.

On 03/08/23, in response to the request made by this Agency, the respondent stated that the entity was in a transition period from one web platform to another when the events occurred and that during this migration process, an unexpected situation arose that resulted in the crossover of some old customer data, describing it as an isolated incident for which they apologized and guaranteed that such a situation would not occur again in the future as they had implemented the necessary technical measures to prevent it.

In parallel, on 26/07/23, the claimant received an email from the respondent apologizing for the errors made and assuring him that they had permanently deleted all his personal data from their mailing lists. However, on 11/08/23, the claimant received another promotional email from the address ***EMAIL.2.

III

Right to Erasure (Right to be Forgotten)

Article 17 "Right to erasure ('the right to be forgotten') of the GDPR states that:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed; b) the data subject withdraws consent on which the processing is based according to Article 6, paragraph 1, letter a), or

Article 9, paragraph 2, letter a), and this is not based on another legal ground; c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21, paragraph 2; d) the personal data have been unlawfully processed; e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller; f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

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(...)

3. Sections 1 and 2 shall not apply when the processing is necessary: a) to exercise the right to freedom of expression and information; b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3; d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously impede the achievement of the objectives of such processing; or e) for the establishment, exercise, or defense of legal claims.”

In this case, it has been established that the complainant requested the deletion of their personal data on two occasions. The first on 27/01/23, and the second on 23/04/23, receiving in both cases the corresponding acknowledgment of receipt from the respondent.

Therefore, in accordance with the evidence available at this moment in the initiation of sanctioning procedure agreement, and without prejudice to what results from the instruction, it is considered that the complainant initially requested the deletion of their personal data on two occasions, a request that was not attended to, since even after declaring to this Agency that the complainant's personal data had been deleted, they were reused to send a new advertising email, which could constitute an infringement, attributable to the respondent for violation of Article 17 of the GDPR.

IV

Classification and qualification of the infringement of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: (...) b) the rights of the data subjects under Articles 12 to 22;”

For the purposes of the limitation period, Article 74.c) “Minor infringements” of the LOPDGDD indicates:

“Minor infringements shall be those remaining formal infringements of the articles mentioned in paragraphs 4 and...”

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5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

(...) c) Not responding to requests for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, unless the provisions of Article 72.1.k) of this organic law apply.”

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects; d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32; e) any previous infringements committed by the controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent; i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures; j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides: “1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

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2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the seriousness of the established infringement, especially regarding the consequences that its commission causes to the claiming party, the imposition of a fine is appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the

GDPR. Thus, the condition of a small enterprise and the turnover of the claimed party (4,283,681 euros in the year 2022) is considered beforehand.

In accordance with the indicated provisions, based on the evidence currently available in the initiation agreement of the sanctioning procedure and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

In an initial assessment, the following aggravating criteria are deemed concurrent:

- Article 83.2.a) of the GDPR: "a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered." The Agency considers that the nature of the infringement is very serious, as after having assured the claimant on several occasions that their personal data had been deleted and even having stated this fact before this Agency, it has been established that such deletion did not occur since their personal data continued to be used to send them new advertising emails.
- Article 83.2.b) of the GDPR: "b) the intentionality or negligence in the infringement." Intentionality or negligence in the infringement: Although the Agency may consider that there was no intentionality on the part of the claimed party, it concludes that their conduct is negligent, having assured that the detected irregularities had been resolved since new systems had been implemented.

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which prevented this type of irregularity, corroborating afterwards that this was not true.

Considering the factors presented, the initial assessment of the fine for the infringement of Article 17 of the GDPR is 10,000 euros (ten thousand euros), without prejudice to what results from the instruction of the procedure.

VI

Adoption of measures

If the infringements are confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

In such a case, in the resolution that is adopted, this Agency may order the responsible party to notify the Agency within one month of the adoption of the measures imposed in the resolution of the procedure for the exercise of rights consisting of the deletion of the data that the respondent holds about the complainant.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR. It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity GRIMEY WEAR, S.L., with CIF: B86141272 for the violation of Article 17 of the GDPR, classified in Article 83.5 of the GDPR, for failing to respond to the request for the exercise of the right to deletion of the personal data of the

complainant.

SECOND: TO APPOINT Mr. B.B.B. as Instructor, and Mr. C.C.C. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, all of which are part of this administrative file.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the penalty that may correspond would be 10,000 euros (ten thousand euros) for the infringement of Article 15 of the GDPR, without prejudice to what results from the instruction of the present sanctioning procedure.

FIFTH: NOTIFY this agreement to initiate the sanctioning file to the entity CARSO TRADING, S.L., granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the penalty to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the penalty to be imposed in the present procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the penalty would be set at 8,000 euros, resolving the procedure with the imposition of this penalty. Similarly, it may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed penalty, which will imply a reduction of 20% of its amount, equivalent in this case to 2,000 euros. With the application of this reduction, the penalty would be set at 8,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the penalty would be set at 6,000 euros (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the penalty.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it refers.

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accepts. Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Once this period has elapsed, it

will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On December 15, 2023, the respondent has proceeded to pay the fine in the amount of 6000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures"

provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202316765, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER GRIMEY WEAR, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to GRIMEY WEAR, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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